

**FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES**

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MARIES S. CAREW d/b/a HOLIDAY SHIPPING,

Docket No. 20-17

Complainant,

ANSWER WITH
AFFIRMATIVE DEFENSES
AND COUNTER-CLAIM

-against-

MAERSK LINE A/S and JOHN DOES,

Respondents.

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Respondent MAERSK A/S s/h/a MAERSK LINE A/S ("MAERSK" or "Respondent"), by its attorneys Mahoney & Keane, LLP, answers the Complaint of Claimant upon information and belief as follows:

AS AND FOR AN ANSWER TO "JURISDICTION AND VENUE"

FIRST: Respondent denies the allegations contained in paragraphs "1", "2", "3", "5", and "6" of Claimant's Complaint.

SECOND: Respondent denies knowledge or information sufficient to form a belief as to the allegation contained in paragraph "4" of Claimant's Complaint.

AS AND FOR AN ANSWER TO "ALLEGED FACTS"

THIRD: Respondent repeats and reiterates its responses to the allegations contained in paragraphs "1" through "6" of Claimant's Complaint as if fully set forth herein at length in response to paragraph "7" of Claimant's Complaint.

FOURTH: Respondent denies the allegations contained in paragraphs "8", "9", "10", "11", "12", "13", and "14" of Claimant's Complaint.

AS AND FOR AN ANSWER TO "REQUEST FOR RELIEF"

FIFTH: Respondent repeats and reiterates its responses to the allegations contained in paragraphs "1" through "14" of Claimant's Complaint as if fully set forth herein at length in response to paragraph "15" of Claimant's Complaint.

SIXTH: Respondent denies the allegation contained in paragraphs "16" of Claimant's Complaint.

AS AND FOR AN ANSWER TO "REQUEST FOR ORAL HEARING"

SEVENTH: Respondent repeats and reiterates its responses to the allegations contained in paragraphs "1" through "16" of Claimant's Complaint as if fully set forth herein at length in response to paragraph "17" of Claimant's Complaint.

EIGHTH: Respondent denies the allegation contained in paragraph "18" of Claimant's Complaint.

AS AND FOR A FIRST SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

NINTH: The Complaint fails to state a claim against Respondent on which relief can be granted.

AS AND FOR A SECOND SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TENTH: Respondent committed no Shipping Act violation and is not liable to Claimant on the cause of action alleged in the Complaint.

AS AND FOR A THIRD SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

ELEVENTH: If there was any loss of and/or damage to cargo as alleged in the Complaint, Respondent is not liable to Claimant by reason of the provisions contained in the bill(s) of lading, contract of carriage, charter party, applicable tariffs, special

contract, or dock receipt.

AS AND FOR A FOURTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWELFTH: If there was any loss/and or damage to cargo as alleged in the Complaint, it was occasioned by causes for which answering third-party defendant is exonerated under the Harter Act, Title 46 U.S.C.A. § 190, et seq.

AS AND FOR A FIFTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

THIRTEENTH: Respondent puts Claimant to its proof of compliance with the provisions for giving of notice and the commencement of suit as provided for in the aforesaid bill(s) of lading and in the United States Carriage of Goods by Sea Act, 1936.

AS AND FOR A SIXTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

FOURTEENTH: Any loss or damage to the goods, as alleged in the Third-Party Complaint, that may have occurred while they were in the possession of custody of Respondent or on board the carrying vessel(s) arose from the conditions of the goods when delivered to answering third-party defendant or from wastage in bulk weights or from inherent defect, quality or vice of the goods, or insufficient packing, insufficiency or inadequacy of marks, latent defects not discoverable by due diligence, or by acts or omissions of the shipper(s) or owner of the goods, their agent or representatives, and Respondent is not under any liability for any such loss or damage.

AS AND FOR A SEVENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

FIFTEENTH: (A) Due diligence was used to make the carrying vessel(s) seaworthy and to secure that they were properly manned, equipped and supplied, and to make the holds and other parts of the ships in which the goods were carried safe and fit for their reception, carriage and preservation in accordance with the provisions of the United States Carriage of Goods by Sea Act, 1936 and the aforesaid bill(s) of lading.

(B) Accordingly, if the goods sustained any loss or damage while they were on board the carrying vessel(s), due to any unseaworthiness of the vessels, which is denied, Respondent is not under liability therefore.

AS AND FOR AN EIGHTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

SIXTEENTH: Claimant's claims are barred by the statute of limitations contained in both the aforesaid bill(s) of lading and the United States Carriage of Goods by Sea Act, 1936 and/or the doctrine of laches.

AS AND FOR A NINTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

SEVENTEENTH: Any damages sustained by Claimant, as alleged in the Complaint, were proximately, directly, and solely caused by the negligent acts of third persons over whom Respondent had and has no direction or control.

AS AND FOR A TENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

EIGHTEENTH: Claimant knowingly and intentionally assumed any and all risks inherent in the shipment(s) of the goods at issue by sea, which is a complete bar to recovery.

AS AND FOR AN ELEVENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

NINETEENTH: Any injuries that may have been sustained by Claimants, as alleged in the Complaint, occurred as a direct result of Claimant's own negligent conduct, and not by any negligence or fault of Respondent, and as such Claimant is barred from recovery in this action.

AS AND FOR A TWELFTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTIETH: Claimant is guilty of culpable conduct in the events giving rise to the claims now asserted in the Complaint, and Claimant's recovery, if any, must be diminished in proportion thereto.

AS AND FOR A THIRTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-FIRST: Claimant has failed to mitigate its damages.

AS AND FOR A FOURTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-SECOND: Any damage as alleged in the Complaint was caused by Restraint of Princes, Act of God, and/or force majeure, and Respondent is thus under no liability therefor.

AS AND FOR A FIFTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-THIRD: As the MAERSK charges which are the subject of the Complaint have been waived, the Complaint should be dismissed as moot.

AS AND FOR A SIXTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-FOURTH: The Complaint concerns breach of contract issues, rather than a Shipping Act violation.

AS AND FOR A SEVENTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-FIFTH: The claimed Shipping Act violations are neither customary nor continuous.

AS AND FOR A EIGHTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-SIXTH: MAERSK's practices were neither unjust nor unreasonable.

AS AND FOR AN NINETEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-SEVENTH: MAERSK's practices were not the proximate cause of Claimant's alleged loss.

AS AND FOR A TWENTIETH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

TWENTY-EIGHTH: MAERSK did not charge demurrage for periods when the Claimant's cargoes were undergoing Customs inspection, so there is no basis to support the violation of the Shipping Act alleged in the Complaint.

**AS AND FOR A TWENTY-FIRST SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

TWENTY-NINTH: MAERSK accomplished delivery of the cargoes in accordance with the terms of the contract of carriage, the Harter Act, and the Pomerene Act and has not held up their release to Claimant by the discharge port authorities, so there is no basis to support the violation of the Shipping Act alleged in the Complaint.

**AS AND FOR A TWENTY-SECOND SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

THIRTIETH: Claimant lacks standing to bring the Complaint.

**AS AND FOR A TWENTY-THIRD SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

THIRTY-FIRST: Under the terms of the contract of carriage and at law, Claimant was responsible for clearing its cargoes through Customs, and MAERSK has no liability for any failure to do so.

**AS AND FOR A TWENTY-FOURTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

THIRTY-SECOND: Complainant has failed to state a claim for which relief may be granted because the Commission's interpretation of 46 U.S.C. §41102(c), as set forth in 46 C.F.R. §545.5, may not be lawfully applied to conduct which occurred before the interpretation was adopted.

**AS AND FOR A TWENTY-FIFTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

THIRTY-THIRD: This Answer and Counter-Claim are made without waiver of any jurisdictional defenses or rights to arbitrate or proceed in another forum that may exist between any of the parties.

AS AND FOR A COUNTER-CLAIM AGAINST CLAIMANT, MARIE S. CAREW
("CAREW") d/b/a HOLIDAY SHIPPING ("HOLIDAY").

THIRTY-FOURTH: This is a claim pursuant to 46 U.S.C. § 4112(a) and 46 C.F.R. § 545.2.

THIRTY-FIFTH: MAERSK is a corporation duly organized and existing pursuant to the laws of foreign country, with offices and place of business located at 50 Esplanaden, DK-1098, Copenhagen K, Denmark.

THIRTY-SIXTH: CAREW is a natural person licensed under No. 019138 as a non-vessel-operating common carrier ("NVOCC") by the Federal Maritime Commission ("FMC") and purporting to operate under the "trade name" of HOLIDAY, with offices and a place of business located at 1153 Willingham Drive, East Point, GA 30344.

THIRTY-SEVENTH: Neither CAREW nor HOLIDAY are licensed as freight forwarders with the FMC.

THIRTY-EIGHTH: The Federal Register notice of CAREW's Ocean Transportation Intermediary license identifies the business as a sole proprietorship.

THIRTY-NINTH: However, HOLIDAY is, in fact, Holiday Shipping and Trucking LLC, a limited liability corporation organized and existing pursuant to the laws of Georgia also with offices and a place of business located at 1153 Willingham Drive, East Point, GA 30344 and with CAREW identified as Registered Agent.

FORTIETH: Claimant's Complaint admits that CAREW is "d/b/a", or "doing business as", "Holiday Shipping, LLC, a Georgia limited liability company."

FORTY-FIRST: Upon information and belief, CAREW uses HOLIDAY as a conduit to pay its debts and obligations and is otherwise an alter ego of HOLIDAY, and/or vice versa.

FORTY-SECOND: Upon information and belief, HOLIDAY has no separate, independent identity from CAREW, and vice versa.

FORTY-THIRD: Upon information and belief, HOLIDAY is an alter-ego of CAREW, because CAREW dominates and disregards the corporate form of HOLIDAY to the extent that HOLIDAY is actually carrying on the business and operations of CAREW as if they were its own, and/or vice versa.

FORTY-FOURTH: Upon information and belief, HOLIDAY inaccurately represented to the FMC that it was a sole proprietorship, rendering HOLIDAY's license invalid.

FORTY-FIFTH: Upon information and belief, CAREW's FMC license was wrongly used to contract for HOLIDAY's business.

FORTY-SIXTH: Under the Shipping Act, an ocean freight forwarder, as opposed to an NVOCC, is not a shipper eligible to enter into a service contract with an ocean carrier.

FORTY-SEVENTH: At all pertinent times, MAERSK as ocean Carrier, and HOLIDAY, as Shipper, were parties to a Service Contract numbered 4227744, wherein only cargoes with respect to which HOLIDAY was acting as an NVOCC were eligible for transport on the terms and conditions set forth in the contract.

FORTY-EIGHTH: Upon information and belief, throughout the period of the Service Contract, CAREW and/or HOLIDAY never issued their own bills of lading for the shipments booked with MAERSK including, inter alia, those at addressed in Claimant's Complaint, as well as those in the related action before the United States District Court for the Southern District of New York under Case No. 19 Civ. 4870 (JPC).

FORTY-NINTH: Paragraph "4" of HOLIDAY's Complaint admits that the cargo owners "retained the services of Plaintiff to perform ocean freight services" only.

FIFTIETH: At Paragraphs 3-4 of her Affidavit sworn to on January 12, 2021 and docketed in this proceeding as Document No. 9, CAREW admitted, "[a]t all times, I operated as an ocean freight forwarder-ocean transportation intermediary (OTI) and appropriately licensed by the Federal Maritime Commission (FMC) . . . At different times, I acted as the freight forwarder on four (4) consignments, shipped through Maersk Line A/S."

FIFTY-FIRST: Upon information and belief, throughout the period of the Service Contract, CAREW and/or HOLIDAY acted as a freight forwarder, rather than NVOCC, with respect to the shipments booked with MAERSK including, inter alia, those at issue in Claimant's Complaint, as well as those in the related action before the United States District Court for the Southern District of New York under Case No. 19 Civ. 4870 (JPC).

FIFTY-SECOND: Claimant knowingly and willfully obtained transportation at less than applicable rates by false, unjust, and unfair means including, inter alia, fraudulently misrepresenting NVOCC status.

FIFTY-THIRD: By signing the Service Contract as an NVOCC and then acting as an unlicensed ocean freight forwarder in tendering cargo under that contract, Claimant knowingly and willingly failed to pay for the transportation of Claimant's cargoes by false, unjust, and unfair means including, inter alia, fraudulent misrepresentation and abuse of corporate form and style of CAREW and HOLIDAY in licensing and contracting.

FIFTY-FOURTH: As a result of the foregoing and Claimant's violations of the Shipping Act, Respondent has been cast in damages equal to the difference between the Service Contract rate and otherwise applicable tariff rate for each shipment improperly tendered under the Service Contract.

WHEREFORE, Respondent demands judgment dismissing the Complaint and awarding to Respondent costs, fees, including reasonable attorneys' fees and disbursements of this action; judgment against Claimant, as well as costs and fees, including attorney's fees and disbursements of this action; and such other and further relief the Court may deem just and proper.

Dated: New York, New York
April 28, 2021

MAHONEY & KEANE, LLP
Respondent MAERSK LINE A/S

By: s/ Garth S. Wolfson
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